

principles for assessing late-filed evidence, see primarily chapter IV.C.4. "Late submission of documents, lines of attack and arguments" for the procedure before an opposition division and chapters V.A.5 (RPBA 2007) and V.A.4. (RPBA 2020) for the procedure before the boards. Below are a number of examples specifically related to issues of late-filed evidence.

The sub-headings are aimed at guiding readers to more specific aspects. The Since the reasons for a decision may touch on several aspects, the abstracts may also deal with points not alluded to in the heading.

### 3.2.1 Evidence wrongly rejected by the examining division as late-filed

In ex parte case T. 545/08 when exercising its discretion, the examining division should have been aware that, although it had cited document D1 (internet publication from a commercial website) at the beginning of the examination proceedings, it had never provided any further explanations or evidence as to the document's public availability before the priority date, so that the objections based on this document had not been properly raised. Moreover, the arguments provided by the examining division for the exercise of its discretion were not persuasive. Under these circumstances, it was not permissible for the examining division to reject the appellant's further evidence as late-filed and to continue to rely on document D1 as prior art. It had thereby infringed the appellant's right to be heard (Art. 113(1) EPC in conjunction with Art. 117(1) EPC).

### 3.2.2 Evidence wrongly rejected by the opposition division as late-filed

The board in T. 1100/07 held that, although the opponent's request that a witness be heard had been filed late and unsatisfactorily presented, the opposition division ought to have heard the witness, particularly since he could have provided testimony on a crucial point it had ultimately relied on in its decision.

In T. 190/05 the board found that the opposition division had been wrong to base its finding that an alleged prior use had destroyed a patent's novelty solely on a statutory declaration, because the patent proprietor had expressly disputed both the allegations made by the opponent and those in the declaration, which represented, besides, a piece of evidence and not in itself prior art. That it would have been impossible to give the witness named by the opponent the minimum two months' advance notice of the already scheduled oral proceedings was not, in the board's view, an exceptional circumstance justifying the failure to invite him.

### 3.2.3 Late-filed evidence before the board of appeal - rejected

In T. 100/97 the board discussed in detail the criteria to be applied to late-filed evidence. Since a UK infringement action had been stayed pending the outcome of the EPO appeal, a swift settlement of the case was especially desirable, and admitting facts and evidence submitted at a late stage might have resulted in a remittal protracting the already lengthy proceedings and thus further delaying the UK proceedings. Moreover, for the contents of the statements to be considered sufficiently credible, they had to be **corroborated by**

**documents of a definite date.** Taking into account the very late stage in the proceedings and in the absence of any such documents, it could not be established with a sufficient degree of certainty what had been made available to the public before the priority date of the opposed patent; the board therefore decided to disregard the late-filed evidence (Art. 114(2) EPC). Compare with T 1057/09 (point 5.9 of the Reasons) concerning remaining doubts as to the authenticity of a late evidence.

### 3.2.4 Comparative tests to demonstrate a technical effect achieved by the claimed invention

In T 2371/13, the party as of right (opponent 1) had requested that the test results filed by the respondent during the examination proceedings and those it had filed in response to the statement of grounds of appeal be excluded from the appeal proceedings. The board refused the request for the following reasons: that an effect is **implausible** owing to the absence of evidence in the patent application is not a sufficient reason for disregarding comparative tests filed subsequently to prove it; disregarding them for that reason is incompatible with the problem-solution approach. As regards taking account of plausibility as part of the inventive-step assessment, and the possibility of considering post-published documents, see also chapters I.D.4.3.3, II.C.6.8, and referral **G 2/21**.

### 3.2.5 Evidence rejected as prima facie irrelevant

In T 39/14, which concerned a method for improving foaming properties, comparative tests filed by the appellant (opponent) with its notice of appeal were considered **prima facie irrelevant** to inventive step and therefore not admitted (Art. 114(2) EPC and Art. 12(4) RPBA 2007). They could possibly have been used to support an objection under Art. 100(b) EPC but that ground for opposition had not been admitted either.

In T 973/10 the board decided not to admit late-filed evidence of prior use. The board held inter alia that the evidence was anyway not prima facie relevant. The **photographs** produced were not sufficiently compelling evidence because they did not enable it to reach any objective conclusion as to the nature and structural details of the device allegedly disclosed at a meeting (Art. 114(2) EPC in conjunction with Art. 12(4) RPBA 2007).

See also T 1680/15 on how the late filing of various means of evidence in the opponent's possession (including an offer of witnesses, affidavits, invoices) affected the board's decision on whether to consider them.

For information on the concepts and provisions that are now applicable, please see the chapters on late-filed evidence and on RPBA 2020.

### 3.2.6 Evidence submitted "in due time"

In T 1830/11 the board observed that there are **no provisions** in the EPC **obliging** opponents to provide evidence against every possible fallback position defined in the dependent claims. Thus, if amendments were made to the claims during oral proceedings before the opposition division, the obligation to submit evidence "in due time" under

Art. 114(2) EPC might, depending on the circumstances, arise first at the stage of filing the statement of grounds of appeal. See also T 998/17.

The board in T 574/02 found that documents could not be considered late-filed simply because they had only been submitted on appeal, and any board faced with a request that it refuse to admit a document or evidence as late-filed first of all had to verify whether it really was late or whether, in the particular circumstances of the case, it had been submitted **in due time**. Finding that the filing party had at all times acted and reacted promptly and with good judgment, the board held that the documents had been submitted in due time within the meaning of Art. 114 EPC. See also T 1647/15 in chapter III.G.3.3.4.

### 3.2.7 Parties' responsibilities

When a party seeks to prove potentially relevant facts by means of the statement of a witness, it is particularly important that this statement be furnished early in the opposition phase so as to enable the witness to give oral evidence in accordance with Art. 117 EPC 1973, in the event that the statement is challenged or the EPO deems it necessary (T 953/90).

In appeal proceedings both parties are under a duty to submit all relevant facts in due time. In T 106/15 the appellant did not at any point in opposition (or opposition appeal) proceedings request that the author of the statutory declaration be heard (see also T 2010/08). Compare with T 41/19.

In T 753/09 an expert declaration had been late filed by the appellant (opponent). Having said that it would allow such belated evidence only if it were sufficiently relevant and if the other party could reasonably react to the late filing, the board ultimately refused to admit it into the proceedings. The board pointed out, inter alia, that as an **expert declaration** had to be considered **not just as an argument**, but as evidence pursuant to Art. 117(1)(e) EPC, the other party should be given the possibility to have such an expert declaration verified or possibly refuted by another expert with the same qualifications (as requested by the respondent as an auxiliary measure). Indeed, in the particular case, such a defence against the expert declaration required quite some time.

In case T 703/12 the board stated that, in accordance with Art. 12(2) RPBA 2007, the appellant's statement of grounds of appeal **should contain its complete case**, inter alia it should specify expressly all the evidence relied on. The appellant (opponent) was aware from the impugned decision that it was questionable whether the alleged prior use had been proven beyond any reasonable doubt. There was no justification for waiting until the oral proceedings to request that the witness be heard. Furthermore, consistent with established jurisprudence, the **generic reference** to the appellant's submissions in opposition in the notice of appeal could not be interpreted as expressly specifying the offer of a witness. Accordingly, the witness offer made for the first time during the oral proceedings constituted an **amendment to the appellant's case** in accordance with Art. 13(1) RPBA 2007 and could only have been dealt with by an adjournment of the oral proceedings. In accordance with Art. 13(3) RPBA 2007, the board decided not to hear the witness. As regards the duty to present a complete case, see T 30/15 and T 1949/09 (late-

filed tests). See also the case law applying new Art. 12(3) RPBA 2020 in chapter V.A.4 below.

In T 1201/14, concerning a fourth line of argument (i.e. implied transfer under Taiwanese law) together with exhibits (opinion of a legal expert and excerpts from the Taiwanese Patent Act) the board concluded that even if Taiwanese law were to be accepted as the applicable law, the outcome would not be different from that of the appellant's second line of argument, as a result of a lack of substantiation regarding the content of the underlying evidence. Consequently, the board decided not to admit the fourth line of argument or the evidence submitted in support of it.

### 3.2.8 Large volume of evidence

It is clear from the provisions of Art. 13 RPBA 2007 that, in spite of the principle of the right to be heard under Art. 113(1) EPC, a party does not have the right to have evidence which he filed or offered during appeal proceedings, in particular during inter partes proceedings, admitted into these proceedings (T 1676/08). In T 1676/08 the patent proprietor had submitted as evidence – allegedly in response to expert opinions submitted by the opponent – a large volume of documents comprising more than a thousand pages and containing expert opinions only one month ahead of the oral proceedings, which the board had already postponed once at the proprietor's request. The board refused to admit one of those expert opinions (D100), finding that D100 was not identifiable as of particular relevance among submissions of over a thousand pages. It also refused to order at such a late stage an opinion by an expert pursuant Art. 117(1)(e) EPC or to hear the party's expert at the oral proceedings in the capacity of an accompanying person (application of G 4/95).

The board in T 508/00 (allegation of prior use) refused to admit **documents (large in number** and including technical drawings) submitted by the opponent. By contrast, it admitted written statements produced by the opponent because they related to the alleged prior use, had been submitted relatively early in the appeal proceedings, giving the patent proprietor time to respond to them, and constituted a response to the opposition division's decision and to employee statements produced by the proprietor a month prior to the oral proceedings before the opposition division.

### 3.2.9 Strategic procedural approaches of parties to presenting evidence

In T 1096/08, notwithstanding that both witnesses were offered at a very late stage, the board could not share the view of the opposition division. Exercising its discretion under Art. 12(4) and 13(1) RPBA 2007, the board considered it appropriate to take evidence from the two witnesses offered by the respondent (opponent) during the first oral proceedings. However, the **piecemeal** approach taken by the respondent in asserting another alleged prior use shortly before the second oral proceedings clearly could not have been dealt with by the appellant or the board without yet another adjournment of the oral proceedings. Therefore, regardless of its relevance, the board decided not to admit this allegation of prior use into the proceedings and not to hear the witness offered as to such use.

In T.245/10 the board held that the respondent (opponent) had had sufficient time to consider the results of comparative tests filed with the statement of the grounds of appeal, and admitted them into the appeal proceedings. The respondent had announced in 2010 that it would comment on those tests and in filing its own comparative tests only a month before the oral proceedings in 2012, the respondent had taken the risk of compromising the admissibility of its own tests, the board observing that a **piecemeal strategy** resulting in multiple rounds of oral proceedings devoted solely to the admissibility of late-filed evidence ran counter to **procedural economy** (Art. 15(6) RPBA 2007; citing T.270/90, OJ 1993, 725, point 2.2 of the Reasons – **tactical abuse of procedure**). See also T.2010/08.

### 3.2.10 Parties treated equally (or not)

In case T.712/97 the opposition division did not allow the appellant's experimental report **in response** to the respondent-patentee's experimental report into the proceedings. To admit the experimental report of one party, but not the response of the other party gave the appearance of **discriminatory treatment**. The opposition division had committed a procedural violation.

The board in T.523/14 considered that it was contrary to the principles of **procedural fairness** and of **equal treatment** of the parties to admit late-filed D55 (written statement submitted by the opponent), while disregarding late-filed D54 (results of a search with internet wayback machine submitted two days later by the patent proprietor) because it lacked prima facie relevance for establishing the publication date of D11. In the board's opinion, D54 could serve to cast reasonable doubt on opponent's allegation that D11 was available on the Glasstech website in November 2007 or before and could thus have been admitted. However, in light of the opposition division's detailed consideration of D54, the board tended to conclude that its admission would not have altered the outcome. Nevertheless, in view of its potential impact on the most contentious issue in the proceedings, namely the public availability of D11, the board decided to consider D54 (see also T.1551/14).

### 3.2.11 When to order the taking of evidence and hearing of witnesses at oral proceedings

In J.20/85 (OJ 1987, 102) the Legal Board held that evidence should be taken as soon as an issue arises. In a dispute between the appellant and the Receiving Section as to whether a particular document had been filed on a particular day, the post room staff could not have been expected to have a clear recollection of what had happened more than a year after the events in question. See also in this chapter: T.1028/11 (late-filed request for a witness hearing); T.2003/08 of 31 October 2012 (hearing of a duly summoned witness who had failed to confirm attendance but was present on the appointed day).

Decision T.1505/16 (slide mechanism of vehicle seat) is an example of a case where, in relation to an alleged prior use, the board decided at the oral proceedings to take evidence by **visual inspection** – of the slide mechanism of the seat brought along by the appellant (opponent) to those oral proceedings – pursuant to Art. 117(1)(f) EPC and R. 117 EPC.